

25STCP04408 25STCP04408

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-07-15

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SS%20%2C26%2C07%2F15%2F2026

Source SHA-256: 9e86ee58ccd5d272928e9eb83231de8c213e653a7b47ddbde4d7c70d730c5a15

Case Number: 25STCP04408 Hearing Date: July 15, 2026 Dept: 26

TENTATIVE RULING:

Petitioner 5 Star GC, Inc.'s Petition to Vacate Arbitration

Award is denied.

The arbitration award is confirmed in favor of Respondent

Theresa Jones, as follows: "Neither Party shall recover any monetary relief against the other Party. The fees and expenses of arbitration shall be borne as incurred by the Parties." (Pet., Attachment 8(C).)

Respondent is to file a proposed judgment within 20 days.

Analysis:

Petitioner 5 Star GC, Inc. ("Petitioner") filed the instant Petition to Vacate Arbitration Award against Respondent Theresa Jones ("Respondent") on November 14, 2025. Respondent filed a Response to Petition on March 12, 2026.

The Court initially set the Petition for hearing on March 23, 2026, at which time it noted that Petitioner improperly filed this action in propria persona, and set an Order to Show Cause Re: Legal Representation for April 20, 2026. (Minute Order, 03/23/26.) The Court expressly ruled that Petitioner could not appear in this action without proper legal representation. (Ibid.) At the Order to Show Cause, Petitioner appeared and asked for more time to seek legal representation. (Minute Order, 04/20/26.) The Court granted the request by continuing the hearing on the Petition to Vacate from June 8, 2026 to July 15, 2026. (Ibid.)

To date, however, Petitioner has not filed a Substitution of Attorney, nor otherwise demonstrated that it has retained counsel. Accordingly, Petitioner 5 Star GC, Inc.'s Petition to Vacate Arbitration Award is denied. When a petition to correct or vacate an arbitration award is denied, the court must confirm the award. (Code Civ. Proc., § 1286; Law Offices of David S. Karton v. Segreto (2009) 176 Cal. App.4th 1, 9-10 ("Upon denying that petition [to correct the award], the trial court should have entered an order confirming the initial arbitration award.") The arbitrator determined that neither party shall recover monetary relief and fees and expenses of arbitration shall be borne as incurred without shifting of fees or compensation. (Pet., Attachment 8(C).)

Conclusion

Petitioner 5 Star GC, Inc.'s Petition to Vacate Arbitration Award is denied.

The arbitration award is confirmed in favor of Respondent Theresa Jones, as follows: "Neither Party shall recover any monetary relief against the other Party. The fees and expenses of arbitration shall be borne as incurred by the Parties." (Pet., Attachment 8(C).)

Respondent is to file a proposed judgment within 20 days.

Judicial Assistant to give notice.